

Rahul v. Dakshinanchal Vidyut Vitran Nigam Ltd

High Court of Judicature at Allahabad · Division Bench · 27 November 2024 · 2024:AHC:185780-DB · WRIT - C No. 33299 of 2024 · **Disposed; clause 6.5 complaint to Executive Engineer; brief recovery stay.**

HEADNOTE

Writ challenging the Recovery Certificate dated 27.05.2023 was disposed of without findings on the demand, on the petitioner's undertaking to file within fifteen days a fresh complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. If the complaint meets the requisites, the Engineer shall decide it on merits within the clause 6.5 time-frame. Recovery and other coercive steps under the certificate are stayed for one month or until that decision, whichever is earlier.

FACTUAL SUMMARY

Rahul challenged, before the Allahabad High Court, a recovery certificate dated 27 May 2023 issued by the Executive Engineer, Electricity Distribution Division-IV, Sadabad, Hathras, of Dakshinanchal Vidyut Vitran Nigam Ltd, and sought a restraint on recovery under it. On 18 October 2024 the Court allowed the licensee time to obtain instructions. On 27 November 2024 counsel produced instructions dated 26 November 2024. The Court found the facts in those instructions hazy.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

fresh clause 6.5 complaint against recovery certificate

HOLDING

The writ seeking quashing of the Recovery Certificate dated 27.05.2023, and a restraint on recovery under it, was disposed of without any observation on the demand. The petitioner undertook to file, within fifteen days, a fresh detailed complaint with the relevant documents under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, Electricity Distribution Division-IV, Sadabad. If that complaint fulfils all requisites, the Executive Engineer shall consider it on its own merits within the time-frame fixed by clause 6.5. For one month, or until disposal of the complaint, whichever is earlier, no recovery or other coercive measure shall be taken pursuant to the certificate. ¶ 4-9

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery certificate was disposed of, without a decision on the demand, on the petitioner's undertaking to avail a fresh complaint under clause 6.5. ¶ 5-8

billing-objection-to-executive-engineer-under-6.5 The fresh complaint, with documents, is to be filed before the Executive Engineer, Electricity Distribution Division-IV, Sadabad, who must consider it on merits within the clause 6.5 time-frame. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CERTIFICATE DATED 27.05.2023 AND THE SUM RECOVERABLE UNDER IT

The Court recorded no observation. It found the facts in the licensee's instructions hazy and left the merits to the Executive Engineer on a fresh clause 6.5 complaint. ¶ 4-7

